

24LBCV01737 24LBCV01737

County: los-angeles

Division: Civil Law and Motion

Department: 25

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Case Number: 24LBCV01737 Hearing Date: August 19, 2026 Dept: 25

Motion: Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Special Interrogatories, Sets One and Two, and Request for Sanctions

Moving Party: Defendant Kim-Anh Nguyen, M.D. ("Defendant")

Responding Party: Plaintiff Jonathan Garcia ("Plaintiff")

Tentative Ruling

The uniform fee for filing a discovery motion under Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure is \$60. (Gov. Code § 70617(a)(4).) "Regardless of whether each motion or matter is heard at a single hearing or at separate hearings, the filing fee required by subdivisions (a), (c), (d), and (e) apply separately to each motion or other paper filed." (Gov. Code § 70617(f).) Instead, Defendant should have filed a total of two separate motions: one motion to compel Special Interrogatories, Set One, and another motion to compel Special Interrogatories, Set Two. The Court will therefore order Defendant to pay \$60 in filing fees.

In the instant motion, Defendant's counsel states that Special Interrogatories, Set One, was served on Plaintiff on October 10, 2024, Special Interrogatories, Set Two, was served on Plaintiff on March 4, 2025, and that there were multiple meet and confer attempts; however, no responses were ever served. (Iacopino Decl., ¶¶ 2-11.) Monetary sanctions are sought in the amount of \$1,081.00. (Iacopino Decl., ¶ 12.)

No opposition has been received.

Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Special Interrogatories, Sets One and Two GRANTED. (Code Civ. Proc., § 2030.290.) The Court declines to award monetary sanctions at this time.

Motion: Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Requests for Admissions, Set One, and Request for Sanctions

Moving Party: Defendant Kim-Anh Nguyen, M.D. ("Defendant")

Responding Party: Plaintiff Jonathan Garcia ("Plaintiff")

Tentative Ruling

Defendant's counsel states that Requests for Admissions, Set One, was served on Plaintiff on October 10, 2024 and that there were multiple meet and confer attempts; however, no responses were ever served. (Iacopino Decl., ¶¶ 2-11.) Monetary sanctions are sought in the amount of \$1,081.00. (Iacopino Decl., ¶ 12.)

No opposition has been received.

Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Requests for Admissions, Set One, and Request for Sanctions is GRANTED. Sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response to the request necessitated the motion to deem request for admissions as admitted. (Code Civ. Proc., § 2033.280, subd. (c).) The Court awards monetary sanctions against Plaintiff payable to Defendant/Defendant counsel in the amount of \$250 payable within 30 days.

Motion: Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Form Interrogatories, Set One, and Request for Sanctions

Moving Party: Defendant Kim-Anh Nguyen, M.D. ("Defendant")

Responding Party: Plaintiff Jonathan Garcia ("Plaintiff")

Tentative Ruling

Defendant's counsel states that Form Interrogatories, Set One, was served on Plaintiff on October 10, 2024, and that there were multiple meet and confer attempts; however, no responses were ever served. (Iacopino Decl., ¶¶ 2-11.) Monetary sanctions are sought in the amount of \$1,081.00. (Iacopino Decl., ¶ 12.)

No opposition has been received.

Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Form Interrogatories, Set One is GRANTED. (Code Civ. Proc., § 2030.290.) The Court declines to award monetary sanctions at this time.

Motion: Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Requests for Production of Documents, Set One, and Request for Sanctions

Moving Party: Defendant Kim-Anh Nguyen, M.D. ("Defendant")

Responding Party: Plaintiff Jonathan Garcia ("Plaintiff")

Tentative Ruling

Defendant's counsel states that Requests for Production of Documents, Set One, was served on Plaintiff on October 10, 2024 and that there were multiple meet and confer attempts; however, no responses were ever served. (Iacopino Decl., ¶¶ 2-11.) Monetary sanctions are sought in the amount of \$1,081.00. (Iacopino Decl., ¶ 12.)

No opposition has been received.

Motion to Compel Plaintiff Jonathan Garcia to Provide Responses without Objections to Her Requests for Production of Documents, Set One is GRANTED. Code Civ. Proc., § 2031.300.) The Court declines to award monetary sanctions at this time.

Motion: Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia Deposition, and Request for Sanctions

Moving Party: Defendant Kim-Anh Nguyen, M.D. ("Defendant")

Responding Party: Plaintiff Jonathan Garcia ("Plaintiff")

Tentative Ruling

Defendant moves to the Court to compel Plaintiff to appear for deposition. Defendant states that Plaintiff failed to appear for two depositions. (Iacopino Decl., ¶¶ 2-5.) Monetary sanctions are sought in the amount of \$1,495.00. (Iacopino Decl., ¶ 12.)

No opposition has been received.

Defendant Kim-Anh Nguyen, M.D.'s, Motion to Compel Plaintiff Jonathan Garcia Deposition, and Request for Sanctions is GRANTED. (Code Civ. Proc., § 2031.300.) Plaintiff to appear for deposition on or before August 28, 2026.

For the two non-appearances, the Court imposes \$250 against Plaintiff payable to Defendant/Defendant counsel within 30 days, declines to award monetary sanctions at this time.